

v. Priest (Serrano III) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel June Kim and exhibits thereto. Plaintiff's counsel's firm charged hourly rates of \$530 for counsel Vanessa Oliva, rates ranging from \$415 to \$445 for counsel June Kim, and rates ranging from \$210 to \$215 for two paralegals. The court finds a reduction in hourly rate is required in light of the cost of comparable legal services in Placer County for a case of this nature. The court finds an hourly rate of \$450 is reasonable for counsel Oliva, an hourly rate of \$415 is reasonable for counsel Kim, and an hourly rate of \$150 is reasonable for paralegal services.

Turning next to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the declaration of counsel Kim and the billing invoice attached thereto as Exhibit 6. The billing invoice supports 33.90 total hours of incurred time. Plaintiff also submits evidence supporting 4.6 hours incurred drafting this motion for fees and reviewing the opposition and preparing the reply. (Supp. Decl. Kim.) With respect to Exhibit 6, the court observes a few instances where the work appears duplicative or unnecessary to the prosecution of the action. The court also observes instances where the work performed is insufficiently explained. In light of these observations, a small reduction in hours is appropriate and the court approves a total of 31.4 hours. This total includes both the time incurred while the case was pending and on litigating this motion for fees. The court awards plaintiff attorneys' fees as follows:

- 1.9 hours at a reduced hourly rate of \$450 (counsel Oliva)
- 25.4 hours at a reduced hourly rate of \$415 (counsel Kim)
- 4.1 hours at a reduced hourly rate of \$150 (paralegals Carreno and Caro)

As to costs, plaintiff seeks \$892.42 and provides a memorandum of costs supporting that amount. Defendant concedes this amount both by not timely filing a motion to tax costs and expressly in the opposition. The court awards costs of \$892.42 as requested.

Accordingly, plaintiff's motion is granted in part. Plaintiff is awarded attorneys' fees of \$12,011 and costs in the amount of \$892.42 for a total of \$12,903.42.

13. S-CV-0054661 Natl. Default Serv. Corp. v. Claimants to Surplus Funds

Review Hearing Regarding Stay

All claimants to surplus funds from the trustee's sale of real property known as 6503 Turnstone Way, Rocklin, California 95765 are required to appear in court on **May 12, 2026 at 8:30 a.m. in Department 42.**

14. S-CV-0054691 Lewis, Christopher v. Sugar Bowl Corp.

Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties' class action and PAGA settlement. No opposition has been filed.

The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699(l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully considered the class action and PAGA settlement agreement and plaintiff's moving papers filed in connection with the motion, as well as the entire court file. The court determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class for the purposes of settlement as, "all current and former non-exempt California employees of Defendant who worked for Defendant at any time during the period from February 21, 2021 through the date the court grants preliminary approval of the settlement [May 12, 2026] who were employed in positions categorized as 'Mountain Positions.'"

The court preliminarily approves the class action and PAGA action settlement agreement attached as Exhibit B to the declaration of counsel Otkupman with one change as to administration costs. While the moving papers request settlement administration costs of up to \$25,000, plaintiff submits evidence supporting administration costs of \$9,450 and plaintiff submitted a proposed order on May 4, 2026 including costs of the lesser amount of \$9,450. The court approves settlement administration costs of \$9,450.

The court also approves the proposed form of noticed attached as Exhibit 1 to the proposed order submitted on May 4, 2026. The court approves the proposed request for exclusion form attached as Exhibit D to the Otkupman declaration.

The court appoints and designates Christopher Lewis as the class representative. The court appoints and designates Otkupman Law Firm, A Law Corporation as class counsel for the purpose of settlement. The court appoints and designates ILYM Group, Inc. as the settlement administrator. The court also incorporates by reference all findings and orders set forth in the Proposed Order submitted on May 4, 2026.

The final approval hearing is scheduled for **November 10, 2026 at 8:30 a.m. in Department 42**. The motion for final approval shall be filed and served in accordance with Code of Civil Procedure section 1005(b).

15. **S-CV-0054943 Haviland, Elizabeth v. The Life is Good Co.**